

		The <i>Acuna</i> court grounded its holding in the legislative purpose of the Small Claims Act. Code of Civil Procedure section 116.120, subdivision (b) declares that the purpose of the small claims divisions is to resolve minor civil disputes expeditiously, inexpensively, and fairly. Consolidating a small claims appeal with a full superior court civil action would fundamentally undermine this purpose by subjecting a small claims matter to the procedural complexity of unlimited civil litigation. Plaintiff Myung Soo Kim to give notice.
8	Magedman vs. STOCKX LLC 2025-01531861	Motion to Compel Arbitration Defendant StockX, LLC’s motion to compel plaintiff Bryan Magedman to submit his claims to binding, contractual arbitration is GRANTED. StockX has met its initial burden showing a valid arbitration agreement between the parties that covers the instant dispute. The burden now shifts to Magedman to show why the agreement should not be enforced. Magedman has not met that burden. The court finds plaintiff is not seeking public injunctive relief in this case which may prohibit enforcement of the arbitration provision. The gravamen of the complaint points to simply a private request. Public injunctive relief is relief that benefits the general public and benefits an individual plaintiff only incidentally or as a member of the general public. <i>Gostev v. Skillz Platform, Inc.</i> (2023) 88 Cal.App.5th 1035. In contrast, private injunctive relief primarily resolves a private dispute between the parties and rectifies individual wrongs even where a group of similarly situated persons would benefit. (<i>Clifford v. Quest Software Inc.</i>, (2019) 38 Cal.App.5th 745.) This action is stayed pending completion of the binding arbitration. The court sets an Alternative Dispute Resolution (ADR) review hearing for May 21, 2027 at 8:30 a.m. in this department. Magedman’s objections to the declaration of Stephen Winn are overruled. Motion to Appear Pro Hac Vice is vacated. See notice filed 7/23/26 (ROA 159). Case Management Conference set this date is vacated. StockX to give notice.